



City Contract No. _____

City of Cheyenne Ice and Events Center
1530 West Lincolnway
Cheyenne, Wyoming 82001

Approved as to
form only:

AKM
Date: 9/25/18

**CITY OF CHEYENNE
COMMUNITY RECREATION AND EVENTS DEPARTMENT
ICE AND EVENTS CENTER USER AGREEMENT**

This Agreement ("Agreement") is made and entered into this 29th day of May, 2018, by and between the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming ("City"), 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, and Cheyenne Stampede Junior "A" Hockey LLC, a limited liability company organized under the laws of the State of Wyoming ("Cheyenne Stampede"), having its principal office at 3303 Forest Drive, Cheyenne, Wyoming 82001. This Agreement pertains to the City of Cheyenne Ice and Events Center ("Events Center") located at 1530 West Lincolnway, Cheyenne, Wyoming. The Events Center is administered by the City of Cheyenne Community Recreation and Events Department.

WHEREAS, the City owns, manages, and operates the Events Center and has the power and authority to lease the use thereof to others for the purpose of conducting certain events and other activities; and

WHEREAS, Cheyenne Stampede desires to use certain portions of the Events Center as indicated on Appendix A to this Agreement and the City desires to license the use thereof to Cheyenne Stampede, for the purpose of holding and presenting Junior "A" Hockey practices and games (collectively referred to herein as the "Season"), all subject to the terms and conditions set forth in this Agreement.

NOW, THEREFORE, in consideration of the covenants and agreements contained herein, and intending to be legally bound hereby, the parties agree as follows:

1. Premises: City hereby grants to Cheyenne Stampede, permission to use those portions of the Events Center set forth on Appendix A, attached hereto and incorporated herein ("Premises"), upon the terms and conditions contained herein. Only Cheyenne Stampede members, designated representatives and invitees are permitted by this Agreement to use the Premises.

2. Term: The period of Cheyenne Stampede's use of the Premises shall be from May 29, 2018 through March 30, 2020 ("Term"). Before the commencement of the Term of this Agreement as set forth in Appendix A, the City shall make the Events Center available to Cheyenne Stampede, upon the payment of separate and additional charges, for (i) preparation for the Season and delivery, move-in and set-up of Cheyenne Stampede property and equipment; and (ii) load-out immediately following the conclusion of the Season, ending no later than the time set forth on Appendix A. Unless expressly stated herein, or otherwise agreed to in writing, all deliveries and items required for presentation of the Season shall be provided at the sole cost and expense of Cheyenne Stampede.

3. Purpose: Cheyenne Stampede shall be permitted to use the Premises solely for the purpose set forth in Appendix A. Cheyenne Stampede is not permitted to use the Premises for other purposes.

4. Fees:

A. In consideration for City granting Cheyenne Stampede permission to use the Premises, Cheyenne Stampede shall pay City user fees according to the following rate schedule:

Games - \$190.00 Per Hour Private Prime Time Rate with an additional \$1.00 per paid game ticket to be paid to the City.

Practices - \$145.00 Per Hour Private Non Prime Time Rate.

B. Cheyenne Stampede will not be charged for ice resurfacing. The City will, at its expense, resurface the ice once immediately prior to each Cheyenne Stampede practice, once prior to team warm-ups preceding each game, once prior to each game following team warm-ups, and once between each period in each game.

C. Cheyenne Stampede will be allowed thirty (30) minutes following the Friday and Saturday games to host "Skate with the Stampede." There will be no charge for the thirty (30) minute skate time, however, skate rentals are not included in this Agreement. The Cheyenne Stampede will perform all pre-game set up, in-game activities or post-game take down.

D. The back storage room at the Events Center will be made available, free of charge, for the 2018-2020 seasons, to be used by Cheyenne Stampede as a team locker room. No fixtures, furnishings, equipment, or other modifications in the back storage room shall be made without the express written approval of the City. Cheyenne Stampede shall have the right to remove its moveable personal property from the back storage room and/or locker room 4 at any time, provided, however, that any and all moveable personal property and all fixtures, furnishings and equipment which remain in the back storage room after the Term of this Agreement may be thrown away, sold or otherwise disposed of by the City. Cheyenne Stampede will be granted limited after-hours access to the back storage room through the back door located on the north side of the Events Center. City will retain one copy of the key to the back storage room to be used for emergency purposes use only. City assumes no liability for the loss or damage of personal property of Cheyenne Stampede stored in the back storage room. Cheyenne Stampede will not use or store any flammable or hazardous material on the Premises of the Events Center.

E. Cheyenne Stampede will be allowed to sell malt beverages, with a permit, in an area to be designated by the City. All profits from the sale of malt beverages shall be the property of Cheyenne Stampede. Malt beverages may be possessed, sold, and consumed at the Events Center only pursuant to a malt beverage permit. Proper permits must be obtained through the City Clerk's Office, 2101 O'Neil Avenue, Cheyenne, Wyoming. Prior to the sale, possession or consumption of malt beverages on the Premises of the Events Center, Cheyenne Stampede will provide liquor liability insurance coverage in such amounts as required by the City. The City requires that the Cheyenne Stampede provide on-site qualified

security, through law enforcement personnel or otherwise, during events involving the sale, possession, or consumption of malt beverages at the Events Center. Malt beverages are allowed to be stored on the Premises of the Events Center in a storage area that must be locked and secured, and security will be enforced by the Manager of the Events Center.

F. City will allow Cheyenne Stampede to display one "Home of the Cheyenne Stampede" banner and one "Beer Garden" banner in the designated area in the arena. The Cheyenne Stampede will also be allowed to place one 41" x 31.5" Cheyenne Stampede sign on the entry window. The window fabric will be required to meet City specifications and will have to be paid for and installed by the Cheyenne Stampede. The Cheyenne Stampede will also be allowed to have their logo placed on the right or left side of Center Ice. The Cheyenne Stampede will be responsible for providing the in ice logo, 9' x 9' Jet Ice Textile, but will be installed by City staff. The City is not responsible for any damage done to the logo during the installation or the removal of ice.

G. Cheyenne Stampede shall be liable for the cost of repair or replacement of any City property damaged or destroyed as a result of Cheyenne Stampede's use of the Events Center, normal wear and tear excepted. Cheyenne Stampede expressly assumes liability for any loss or damage to City property which is caused by its principals, officers, employees, agents, representatives, volunteers, or players. Cheyenne Stampede expressly assumes liability for any loss or damage to City property caused by persons or entities who have been invited by Cheyenne Stampede to be present at the Events Center for purposes permitted under this Agreement, and for any such loss or damage caused by their officers, employees, agents, representatives, volunteers or players. In addition, any person who causes any loss, injury or damage to the Events Center or to any other property or facilities of the City may be banned from the Events Center by the City Community Recreation and Events Director, in his or her sole discretion, after consultation with Cheyenne Stampede.

H. Cheyenne Stampede will be billed monthly for ice time and other user fees. In the event that Cheyenne Stampede fails to pay user fees required by this Agreement on or before the specified payment dates, the City reserves the right to impose finance charges equal to 1.5% per month (18% per annum) on such unpaid amounts. In the event of default of payment pursuant to Section 18 below, the City reserves the right to terminate this Agreement. Costs of collection and reasonable attorneys' fees incurred in connection therewith shall be paid by Cheyenne Stampede.

I. Cheyenne Stampede shall be allowed to place an 8' x 12' temporary storage structure in an area to be designated by the City on the east side of the Events Center for storage. City assumes no liability for theft, damage or loss of either the structure or its contents. In the event the storage structure is vandalized or otherwise damaged, Cheyenne Stampede will repair the damage or remove the structure in a timely manner.

J. Cheyenne Stampede will be allowed to rent room 123 for use as office space from May 29, 2018 through March 30, 2020. The use of this room as office space for any particular month is contingent upon the payment of a monthly rental of One Hundred Fifty Dollars (\$150.00) which must be paid on or before the first business day of the month. All furniture, equipment and other personal property placed in the room by Cheyenne Stampede

must be removed within fifteen (15) days following the last day of the month for which a monthly rental has been paid or within fifteen (15) days after the termination of this Agreement.

5. City's Responsibilities: The City will provide the following during Cheyenne Stampede periods of use of the Premises as stated in Appendix A.

- A. Use of the Premises by Cheyenne Stampede.
- B. Electricity and other utilities for lighting, heating, and air conditioning, as customarily provided by City for ice skating events at the Events Center.
- C. Cleaning and janitorial services for the team locker room will be performed only if requested by Cheyenne Stampede and only in the presence of a coach, general manager, or other authorized representative at the rate of One Hundred Dollars (\$100.00) per cleaning and is the responsibility of Cheyenne Stampede.
- D. One Premises supervisor who shall be in attendance during any scheduled Event.
- E. Ice resurfacing as described in Section 4(B) of this Agreement. Cheyenne Stampede will pay a charge of Fifty Dollars (\$50.00) for each additional ice resurfacing not provided for in Section 4(B) and requested by Cheyenne Stampede.
- F. Wireless internet and router will be provided, however, the City does not guarantee any level of service and shall not be responsible for any loss or discontinuation of service.

6. Cheyenne Stampede's Responsibilities: Cheyenne Stampede agrees to comply with the following terms and conditions during its use of the Premises.

- A. No alcoholic, malt beverages, or glass containers shall be brought on the Premises by players, coaches, or staff.
- B. No outside food or beverages may be consumed by business invitees of Cheyenne Stampede in the absence of the express written consent of the City's Community Recreation and Events Director or Deputy Director. All donated items must be pre-approved by the Manager of the Events Center, fourteen (14) days prior to donation.
- C. All hockey participants shall wear a helmet and necessary protective equipment as required by insurance.
- D. Cheyenne Stampede shall not permit any person, staff, players, or coaches to be present or remain on the ice while the ice surfacing machine is in operation.
- E. Cheyenne Stampede shall strictly adhere to the dates and the starting and finishing times of its permitted periods of use as set forth in the ice schedule. Any practices

or games that run past scheduled times will be billed at the applicable ice rate. In addition, Cheyenne Stampede must permit the City to perform ice resurfacing in accordance with the provisions of Section 4(B) of this Agreement and may not alter or amend the schedule of ice resurfacing to be performed at the expense of the City.

F. Cheyenne Stampede shall comply with all rules and regulations at the Events Center and with the directions of City personnel responsible for the operation or security of the Events Center.

G. Cheyenne Stampede shall provide security personnel if requested by the City pursuant to Section 10 of this Agreement.

H. Cheyenne Stampede shall not perform any act or allow any act to be done during the Term of this Agreement which would mar, deface, or injure any part of the Events Center. Upon expiration of the Term, and between seasons, Cheyenne Stampede shall surrender possession of the Premises to the City in as good condition and repair as at the beginning of the Term, excepting normal wear and tear. Should damage occur, Cheyenne Stampede will be liable for the cost of necessary repairs and replacements.

I. Cheyenne Stampede shall notify the City in writing of the cancellation of any practice or game at least seventy-two (72) hours prior to the date of the practice or game. In the event Cheyenne Stampede fails to provide at least seventy-two (72) hours' notice of the cancellation of any game or practice, Cheyenne Stampede will remain liable for the user fee for the practice or game time. In the event the Events Center is closed by the City due to inclement weather, road closures or other unusual events, the City may, in its discretion, refund user fees which were paid in advance subject to such terms and conditions as may be imposed by the City. City retains the right, in its sole discretion, to close the Events Center. In the event of a weather induced cancellation, the seventy-two (72) hour notice is void.

J. This Agreement does not authorize Cheyenne Stampede to have exclusive use of the entire Events Center, even during games. Other areas of the Events Center, such as the lobby, arcade, and birthday party room will remain open for regular public use. Cheyenne Stampede may rent the entire Events Center at regular rental rates if exclusive use of the entire facility is desired. For game use, the Cheyenne Stampede will have exclusive use of inner arena areas including ice surface, spectator stands, and team locker rooms.

K. Cheyenne Stampede may sell approved merchandise in designated areas only. Cheyenne Stampede will retain all profits from merchandise sales.

L. All ticket sales, individual games, season packages or otherwise, for Cheyenne Stampede hockey games will be conducted by the Cheyenne Stampede unless the Cheyenne Stampede enter into an agreement with the City of Cheyenne to use their ticketing software.

6. Concessions: The City specifically reserves to itself and its usual Events Center concessionaires the exclusive right to provide and sell, and to retain the proceeds from the sale of, all food and beverages and all other concessions, other than alcoholic beverages, as provided in Section 4(D). All concessions of food and beverage provided to Cheyenne Stampede or its guests, invitees or other Event attendees, shall be at an additional charge.

7. Indemnification: Cheyenne Stampede agrees to defend, hold harmless, and indemnify the City of Cheyenne, and its officials, employees, agents, successors, assigns, and volunteers, against any and all claims, demands and causes of action, including attorneys' fees and costs, arising during or resulting from Cheyenne Stampede's use of the Events Center pursuant to this Agreement, and shall provide insurance coverage of the types and amounts as set forth in this Agreement. Cheyenne Stampede acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

8. Governmental Immunity: Neither the City, nor any of its officers, employees, or agents, waives governmental immunity by entering into this Agreement and specifically retain all immunities and defenses available to them as Governmental Entities pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable laws, except to the extent necessary solely for the enforcement of the terms and conditions of this Agreement as between the parties. Further, the City fully retains all immunities and defenses provided by law with regard to any action, whether in tort, contract or any other theory of law, based on this Agreement. Designation of venue, choice of law and similar provisions should not be construed as a waiver of governmental immunity.

9. Insurance: Cheyenne Stampede shall provide proof of the following insurance coverage.

A. **Commercial General Liability Insurance** - For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

B. **Additional Insurance Information -**

(i) Cheyenne Stampede shall name City of Cheyenne as an Additional Insured, by endorsement on its insurance policies, and shall provide the City with a copy of the endorsement. Cheyenne Stampede shall provide the City with certificates of insurance, acknowledging the above-stated coverages prior to conducting any activities on the Premises of the Events Center under this Agreement.

(ii) It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Cheyenne Stampede to immediately notify the City Risk Manager, City Clerk or City Attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement. The failure to provide such notice shall be a breach of this Agreement.

(iii) In addition, Cheyenne Stampede shall provide the City with copies of insurance policies and endorsements listing the City of Cheyenne as an Additional Insured. The City's failure to request or review such policies, endorsements and certificates shall not affect the City's right or Cheyenne Stampede's obligations hereunder.

(iv) Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best Rating of A- (excellent).

(v) The City reserves the absolute right to terminate this Agreement upon written notice to Cheyenne Stampede if Cheyenne Stampede does not deliver to the City the required documents of insurance required under the provisions of this section of this Agreement. In the event of such termination by the City, there shall be no further liability of any kind or nature whatsoever owed by the City to Cheyenne Stampede, and the City shall retain all rights under law.

10. Security: If requested by the City, Cheyenne Stampede shall provide and pay for its own security personnel in sufficient numbers to police Cheyenne Stampede's use of the Premises and spectators, guests, and invitees attending Cheyenne Stampede Events. Any security personnel to be provided by Cheyenne Stampede must be licensed in accordance with the City Code of the City of Cheyenne and approved in writing by the City's Chief of Police, or authorized designee, no later than ten (10) days in advance of Cheyenne Stampede's use of the Premises. In the event the City requests security personnel and Cheyenne Stampede fails to obtain City approval of security personnel in a timely fashion or fails to provide adequate security, as determined by the City in its sole discretion, the City shall have the right to provide security personnel at the expense of Cheyenne Stampede or, alternatively, the City shall have the right to terminate this Agreement.

11. Safety: If, in the sole discretion of the City, Cheyenne Stampede's use of the Premises at any time poses a danger to the safety of any other user of the Premises or City employee, security personnel or presents unreasonable risks of harm or damage to City property, the City reserves the right to eject from the Premises any person making use of the Premises through or in association with Cheyenne Stampede and any participant(s), attendee(s), or spectator(s) who are present at the Events Center during any event sponsored or conducted by Cheyenne Stampede, to restrict Cheyenne Stampede's activities on the Premises, to cancel any period of Cheyenne Stampede's use of the Premises and to terminate this Agreement in its entirety. Any such action by the City shall not be deemed to be a breach of this Agreement and the City shall not be liable for damages for such an action. The City's reservation of rights in this section shall not in any way relieve or limit Cheyenne Stampede's duty to indemnify the City pursuant to this Agreement.

12. Responsibility for Safety: Cheyenne Stampede shall be responsible for all crowd control while in possession of the Premises.

13. Assumption of Risk: Cheyenne Stampede, and all persons using the Events Center and Premises for any purpose under this Agreement, and all invitees of Cheyenne Stampede, assume all risk and danger incidental to the use of the Events Center and Premises for hockey, other sports, and other recreational opportunities. Cheyenne Stampede, and its principals, coaches, parents, players, and volunteers agree and acknowledge that hockey and other recreational sports and opportunities present inherent risks, including personal injury, paralysis and death, resulting from

pucks, hockey equipment, or other players. It is mutually understood and agreed that the City reserves all defenses and immunities available under the Recreation Safety Act, Wyo. Stat. §§ 1-1-121 through 1-1-123.

14. Control of Premises: The City shall have the right to enter upon and have access to the Events Center and Premises. By entering into this Agreement, the City reserves the right to control the management of the Events Center and to enforce all necessary rules and regulations. The decision of the City as to the number of persons that can safely and freely move about in the Premises shall be final.

15. Reservation of Rights: The City reserves all rights not expressly granted to Cheyenne Stampede hereunder, and may, during the Term, use any or all portions of the Premises not specifically licensed to Cheyenne Stampede hereunder. City reserves the right to eject from the Events Center or Premises any person for any reason which the City, in its sole discretion, deems sufficient.

16. Licenses: City shall secure in advance, prior to commencement of the Term, all licenses and permits that may be required by or in connection with the use of the Premises for the Event including, without limitation, any licenses or permits required by any performing arts societies, such as ASCAP, BMI and/or SESAC.

17. Promotional Activity: All advertising and promotion of the Season, Games, and/or Camps shall be the responsibility of Cheyenne Stampede, at its sole cost.

18. Termination: In the event Cheyenne Stampede at any time fails to comply with any of the terms and conditions of this Agreement, and fails to cure such non-compliance within five (5) business days of its receipt of written notice describing such non-compliance, the City may terminate this Agreement, retain as damages any fees paid by Cheyenne Stampede under this Agreement, and exercise such other rights as provided by law. The Cheyenne Stampede may terminate this Agreement within thirty (30) days written notice to the City of Cheyenne.

19. Assignment: Cheyenne Stampede may not assign its right to use the Premises to any other person, group or organization without the express written consent of the City.

20. Independent Contractors: The relationship between the City and Cheyenne Stampede is that of independent contractors and not agents or employees. Under no circumstances shall this Agreement be considered a contract of partnership or joint venture.

21. Force Majeure: In the event the City is unable to perform any of the terms or conditions of this Agreement due to events or causes beyond the City's control, such as destruction or damage to the Events Center or Premises as a result of fire or act of God, riot, labor, strike, national or local emergency, the City shall not be deemed to be in breach of this Agreement or liable to Cheyenne Stampede for damages.

22. Applicable Law: This Agreement shall be construed and enforced in accordance with the laws of the State of Wyoming and may be enforced in any court of competent jurisdiction in the State of Wyoming.

23. Entire Agreement: This Agreement consisting of ten (10) pages, including Appendix A, constitutes the entire Agreement between the City and Cheyenne Stampede and cannot be amended except in writing and signed by both parties. The City and Cheyenne Stampede shall not be bound by any agreements, conditions, representations, or warranties relating to the Premises or Cheyenne Stampede's use thereof, oral or written, express or implied, that is not contained in this Agreement.

IN WITNESS WHEREOF, the City and Cheyenne Stampede have executed this Agreement as of the date and year first above written.

CHEYENNE STAMPEDE JUNIOR "A" HOCKEY LLC

Date

By: _____

Printed Name: _____

Title: _____

CITY OF CHEYENNE, WYOMING

Date

Marian J. Orr, Mayor

(SEAL)
Attest:

Carol Intlekofer, City Clerk

APPENDIX A

- I. PREMISES: Portions of the City of Cheyenne Ice and Events Center Ice Surface, Team Locker Room, Locker Rooms, Team Office.